City of Langford

Council Minutes

February 6, 2023, 7:00 PM
Council Chambers & Electronic Meeting

PRESENT:	Mayor S. Goodmanson Councillor K. Guiry Councillor C. Harder Councillor M. Morley	Councillor L. Szpak - Remote Councillor M. Wagner Councillor K. Yacucha
ATTENDING:	D. Kiedyk, Chief Administrative Officer B. Hutchins, Director of Corporate Services M. Watmough, Deputy Director of Corporate Services M. Baldwin, Director of Planning and Subdivision M. Dillabaugh, Director of Finance M. Mahovlich, Director of Engineering and Public Works K. Balzer, Director of Engineering and Public Works	K. Dube, Senior Manager of Information Technology and GIS Y. Nielsen, Director of Parks, Recreation and Facilities W. Robinson, Manager of Building Services R. Gillich, Systems Administrator B. Boisvert, Records Assistant R. Parmar, FOI Coordinator

Meeting available by teleconference.

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1. TERRITORIAL ACKNOWLEDGEMENT

M. Watmough, Deputy Director of Corporate Services, read the City of Langford's Territorial Acknowledgment.

2. CALL TO ORDER

Mayor Goodmanson called the meeting to order at 7:05 pm.

3. APPROVAL OF THE AGENDA

THAT Council approve the agenda as presented.

4. PRESENTATIONS

4.1 Royal Roads University - Brian White, Professor and Dr. Rob Newall

Professor Brian White presented to Council a social science project regarding densification of the downtown area of the City of Langford. Dr. Rob Newall presented to Council a research project regarding the Millstream Watershed.

5. PUBLIC HEARINGS

5.1 BYLAW NO. 2068

"Langford Zoning Bylaw, Amendment No. 674, (658 and 664 Redington Avenue), Bylaw No. 2068, 2022".

The Mayor opened the Public Hearing for Bylaw No. 2068 at 7:24 p.m.

Director of Planning Matthew Baldwin advised that Rachael Sansom of Grayland Consulting has applied on behalf of Greg Burke of the Redington Property Group to amend the text of the Business Park 1A – Millstream Road East (BP1A) Zone at 658 and 664 Redington Avenue to increase the allowable gross floor area from 8,500m² to 20,250m².

This is being proposed in order to allow for the construction of a mini-storage facility at 664 Redington Avenue.

Council required a Traffic Impact Assessment, based on the total proposed gross floor area of 20,250m², be completed prior to a Public Hearing.

The Director of Engineering has received and approved the Traffic Impact Assessment, which stated that an additional 18 vehicle trips to the site would be the result of the proposed text amendment.

Prior to bylaw adoption, the applicant will register a covenant that agrees to complete all recommended road improvements noted in the Traffic Impact Assessment and that a reciprocal access easement between 658 and 664 Redington Avenue is registered prior to issuance of a building permit.

This proposal is consistent with the Official Community Plan 'Mixed Use Employment Centre' designation.

Notifications and advertisements have been placed as required by the *Local Government Act*.

Mayor Goodmanson called a first time for presentations.

Rachael Sansom of Grayling Consulting presented a rendering of the proposed project.

Councillor Szpak inquired about a new sidewalk.

Michelle Mahovlich; Director of Engineering and Public Works - responded to Councillor Szpak that land is not available to build a new sidewalk in the area. But efforts to expand the already existing sidewalk, will be made.

Councillor Szpak inquired about a Chestnut tree being retained.

Michelle Mahovlich; Director of Engineering and Public Works - responded to Councillor Szpak that all efforts to retain viable landscaping will be made.

D. Stroud, 2458 Jeanine Dr - Expressed concern for the Millstream Watershed protection.

S. Geary, Bear Mountain Pkwy - Inquired what steps are being taken to ensure large vehicles can maneuver through the roundabout safely.

Michelle Mahovlich, Director of Engineering and Public Works - responded to the caller that the roundabout is designed to allow large vehicles.

Rachael Sansom, Graying Consulting - responded that commercial vehicles would be accessing the proposed development.

F. Denux of Groupe Denux Property - In favour of the proposal to expand the current storage site.

J. Warnock, 302 Lone Oak Pl - In favour of the proposed development.

P. Dodds, 672 Redington Ave - Expressed concern about the construction plan.

L. Plomp, 3472 Whimfield Terr - Expressed concern about the size of the development.

Mayor Goodmanson called a second time for presentations.

None presented.

Mayor Goodmanson called for a third and final time for presentations. There being none, he declared the Public Hearing for Bylaw No. 2068 closed at 7:51 p.m.

5.2 BYLAW NO. 2105

"Langford Zoning Bylaw, Amendment No. 694, (771, 775, and 781 Station Avenue), Bylaw No. 2105, 2022".

The Mayor opened the Public Hearing for Bylaw No. 2105 at 7:52 p.m.

Director of Planning Matthew Baldwin advised that Ben Gulbrandsen of Pacific Viking Group Properties Inc. has applied on behalf of 1334908 Station Holdings Ltd to amend the zoning of 771, 775, and 781 Station Avenue from the R2 (One- and Two-Family Residential) Zone to the CC1 (City Centre) Zone.

This is being proposed in order to allow for the development of a six-storey mixed-use building with approximately 60 residential units and 850 m2 of commercial space on the ground floor.

Prior to Public Hearing, Council required the following items:

i. A technical memo from an engineer that verifies storm water can be adequately managed on-site for the proposed development to the satisfaction of the Director of Engineering;

ii. A frontage drawing to confirm if road dedication is required to complete all required frontage improvements

iii. A memo prepared by a Landscape Architect that examines existing trees on site and in the frontage and provides comment on the potential for tree retention as part of the development plan, to the satisfaction of the Director of Planning;

The Director of Engineering has reviewed and approved both the technical memo pertaining to stormwater and the frontage drawing. The applicant was able to demonstrate that all frontage requirements can be accommodated within the existing road right of way, and no road dedication will be required for this project.

The applicant also submitted a memo pertaining to existing trees on the subject properties, prepared by a Landscape Architect. All 10 trees on site will need to be removed due to their location within the building envelope and parkade footprint. Council may wish to note that 6 new trees will be planted within the City boulevard as part of the required frontage improvements.

In further support of this application, the applicant has agreed to provide the following:

1. A Section 219 covenant, registered in priority of all other charges on title, that agrees to the following:
a. That the following will be provided and implemented to Bylaw No. 1000 standards to the satisfaction of the Director of Engineering prior to the issuance of a building permit:
i. Full frontage improvements inclusive of finishing the sidewalk, boulevards, and completing Aprell Place to the R11 cross section standards;
ii. A storm water management plan; and
iii. A construction parking management plan.

b. That the properties be consolidated prior to issuance of a Development Permit for Form and Character;

c. That no occupancy permit be issued for the proposed building until a strata plan for the building has been registered, to the satisfaction of the Approving Officer;

d. That a separate covenant be registered prior to issuance of a building permit for the proposed development that ensures residential parking is allocated to each unit and visitors as required by the zoning bylaw and is not provided in exchange for compensation separate from that of a residential unit;

e. That all concrete used on-site will be produced using post-industrial CO2 mineralization technology, or equivalent which offers concrete with lower embodied CO2 than all other competing bids, and that prior to the issuance of a Building Permit the applicant shall provide a product-specific Type III Environmental Product Declaration that is 3rd party verified specifying the total embodied carbon content of concrete; and

f. That, prior to the issuance of a Building Permit, the developer enters into a Housing Agreement that requires a minimum 5% of units constructed be directed to and in accordance with the Attainable Home Ownership Program (POL-0166-PLAN) and that the developer identify the Attainable units on the plans submitted for the required Development Permit application.

This proposal is consistent with the Official Community Plan City Centre designation.

Notifications and advertisements have been placed as required by the *Local Government Act.*

Mayor Goodmanson called a first time for presentations.

Alan Lowe, Architect on behalf of Pacific Viking Group Properties Inc. - presented an outline of the proposed development.

T. Bolt, 655 Goldstream Ave - Expressed concern about the lack of accessibility in the development plans.

L. Stroud, 2458 Jeanine Dr - Expressed concern about the loss of trees in the development area. Believes there to be too much parking in the plans. Concerned about the amount donated to the affordable housing program.

B. Armstrong, 2813 Rodney Rd - Expressed inquiry about the setbacks to the property. Expressed concern about the outside cladding colours. Inquired about the size of the trees to be planted and suggested planting trees nearby the development.

M. Rogers, 2711 Windman Ln - Expressed concern about the replacement of trees will be non-native.

S. Geary, Bear Mountain Pkwy - Supports the development. Expressed concern about construction noise to local businesses.

M. McKay, 2830 Peatt Rd - Expressed support for the proposed development.

M. Sunshine, 501 Langvista Dr - Expressed concerns about the loss of trees. Supports the potential of planting trees across from the development.

E. MacDonald, 2472 Setchfield Ave - Expressed an alternative to the loss of trees, by repurposing acorns from recent trees.

P. Hamilton, 656 Granderson Rd - Expressed concern regarding the overall look of development and would like it to match the vision of the area.

Scott, Flint Ave - Expressed support for the development.

Mayor Goodmanson called a second time for presentations.

B. Armstrong, 2813 Rodney Rd - Expressed a request for more accessible units be available.

N. Johal, 3274 Walfred Pl - Expressed support for the development. Inquired about using arborist in all developments.

G. Burke, Victoria - Expressed support for the development.

Mayor Goodmanson called for a third for presentations.

E. Schmitt, 646 Atkins Ave - Expressed support for the development.

Alan Lowe, architect for the development - responded to the concerns of the public.

T. Bolt, 655 Goldstream Ave - Expressed the difficulties of the lack of accessibility in a development.

P. Hamilton, 656 Granderson Rd - Expressed concern about Oak trees not being planted.

D. Cottle, 515 Westwind Dr - Inquired about the use of sidewalks.

Councillor Wagner inquired about maintaining a public space area in the development area. Also inquired about the size of the trees.

Councillor Guiry inquired about parking being E.V. ready.

Matthew Baldwin, Director of Planning - responded that parking requirements are part of the zoning bylaw.

Councillor Morley inquired about the trees being drought resistant and requested that indigenous trees be used instead.

Yari Nielsen, Director of Parks, and Facilities - responded regarding the trees. Trees that are recommend by the Parks Department are already growing in Langford and some indigenous trees are difficult to maintain on short Boulevards.

Alan Lowe, architect for the development – responded to the Councillors inquiries. Steps are being made to maintain the public space. The developers will consider the recommendations made by staff for the trees to be planted.

Mayor Goodmanson declared the Public Hearing for Bylaw No. 2105 closed at 8:56 p.m.

6. PUBLIC PARTICIPATION

M. Morton, 495 Phelps Ave - re: Item #12.4 - Expressed opposition to the bylaw.

J. Smirl, 3490 Luxton Rd - re: Item #12.4 - Expressed opposition to the bylaw.

D. Smirl, 3490 Luxton Rd - re: Item #12.4 - Expressed opposition to the bylaw.

H. Frederiksen, 2613 Viola Pl - re: Item #11.6 - Expressed concern for the lack of committees being developed.

M. Wignall, 2375 Selwyn Rd - re: Item #12.4 - Expressed opposition of the bylaw.

B. Louie, 2191 Bellamy Rd - re: Item #11.6 - Expressed support for the previous committee's structure. re: Item #11.7 - Expressed suggestions regarding social media engagement.

L. Foxall, Players Dr - re: Item #12.4 - Expressed opposition to the bylaw. re: Item #7.1 - Expressed concern that their statement was captured incorrectly. re: Item #11.7 - Expressed concern about Council and social media use.

S. Geary, Bear Mountain Pkwy - re: Item #11.6 - Expressed support. re: Item #11.7 - Expressed support. re: Item #11.8 - Expressed support. re: Item #12.4 - Expressed support.

S. Sifert, 918 Walfred Rd - re: Item #12.4 - Expressed opposition to the bylaw. re: Item #11.7 - Expressed concern about social media use.

M. Sunshine, 501 Langvista Dr - re: Item #11.6 - Expressed support. re: Item #11.7 - Expressed support. re: Item #12.4 - Expressed support.

W. Hobbs, 3442 Luxton Rd - re: Item #11.6 - Expressed concern that there is not a Protective Service Committee. re: Item #12.4 - Expressed concern about the removal of trees.

C. Craig, 2830 Lakehurst Dr - re: Item #11.6 - Expressed concern about Board of Variance Committee. re: Item #11.7 - Expressed concern about the report. re: Item #12.4 - Expressed support to the bylaw.

C. Weatherston, 2977 Cressida Cr - re: Items #12.4 and #12.5 - Expressed support to both bylaws. re: Items #11.6 and #11.7 - Expressed support for both items.

D. Saunders, 813 Pears Rd, Victoria - re: Item #12.4 and #12.5 - Expressed opposition to the bylaws.

N. Johal, 3274 Walfred Rd - re: Item #12.4 - Expressed opposition to the bylaw. re: Item #11.7 Supports the report. re: Item #12.3 - Expressed concern about an increase in cost.

B. Armstrong, 2813 Rodney Rd - re: Item #12.4 - Expressed support for the bylaw.

N. Johal, 3274 Walfred Rd - re: Item #11.6 - Expressed concern regarding the proposed committee's structure.

MOVED BY: HARDER
SECONDED: GUIRY

THAT Council at 9:40 p.m. extend the public participation for 15 minutes.

Motion CARRIED.

MOVED BY: WAGNER
SECONDED: GUIRY

THAT Council extend the meeting past 10:00 p.m. for 1 hour.

Motion CARRIED.

MOVED BY: GUIRY
SECONDED: WAGNER

THAT Council at 10:01 p.m. extend public participation for 15 minutes.

Motion DEFEATED.

Amendment:
MOVED BY: GUIRY
SECONDED: MORLEY

THAT Council at 10:03 p.m. extend the public participation for 15 minutes for first time speakers.

Motion DEFEATED.

7. ADOPTION OF COUNCIL MINUTES

7.1 Minutes of the Council Meeting - January 16, 2023

MOVED BY: HARDER
SECONDED: GUIRY

THAT Council approve the minutes of the meeting of Council held on January 16, 2023.

Motion CARRIED.

8. COMMITTEE RESOLUTIONS

8.1 Minutes of the Transportation and Public Works Committee Meeting - April 12, 2022

MOVED BY: HARDER
SECONDED: WAGNER

THAT Council approve the minutes of the meeting of the Transportation and Public Works Committee held April 12, 2022.

Motion CARRIED.

8.2 Minutes of the Special Administration and Finance Committee Meeting - April 20, 2022

MOVED BY: WAGNER
SECONDED: GUIRY

THAT Council approve the minutes of the meeting of the Special Administration and Finance Committee held April 20, 2022.

Motion CARRIED.

8.3 Minutes of the Protective Services Committee Meeting - April 26, 2022

MOVED BY: YACUCHA
SECONDED: GUIRY

THAT Council approve the minutes of the meeting of the Protective Services Committee held April 26, 2022.

Motion CARRIED.

8.4 Minutes of the Planning, Zoning and Affordable Housing Committee Meeting - August 29, 2022

MOVED BY: MORLEY
SECONDED: WAGNER

THAT Council approve the minutes of the meeting of the Planning, Zoning and Affordable Housing Committee held August 29, 2022.

Motion CARRIED.

8.5 Minutes of the Parks Recreation, Environment, Culture and Beautification Meeting - September 22, 2022

MOVED BY: GUIRY
SECONDED: YACUCHA

THAT Council approve the minutes of the meeting of the Parks Recreation, Environment, Culture and Beautification Committee held September 22, 2022.

Motion CARRIED.

9. OTHER BOARD AND COMMISSION MINUTES

9.1 West Shore Parks and Recreation Board Meeting - December 8, 2022

MOVED BY: GUIRY
SECONDED: YACUCHA

THAT Council receive the minutes of the West Shore Parks and Recreation meeting held on December 8, 2022.

Motion CARRIED.

10. NOTICES OF INTENT

10.1 TUP19-0002 - Renewal for non-medical cannabis retail store of 101-945 Reunion Ave

MOVED BY: YACUCHA
SECONDED: HARDER

THAT Temporary Use Permit No. TUP19-0002 be issued by the Council for the City of Langford to The Original Farm Ltd on behalf of Jacklin Property Ltd to allow The Original Farm Langford to continue their Cannabis Retail operation by extending the current Temporary Use Permit for a three-year period at 101-945 Reunion Avenue subject to the following terms and conditions:

1. Conditions

The following requirements are imposed under section 493 of the *Local Government Act:*

Whereas:

a) The non-medicinal use of cannabis and cannabis related products has historically been prohibited by federal law in Canada and, as a result, has historically been prohibited by the City under its Zoning Bylaw No. 300;
b) On October 17, 2018, the Federal Government legalized the non-medicinal use of cannabis and cannabis products;
c) The Federal Government and the Provincial Government have developed a regulatory framework for the retail sale of cannabis and cannabis products for non-medicinal use;
d) The City wishes to authorize the retail sale of cannabis and cannabis products within its boundaries, but recognizes that there are challenges associated with it doing so;

e) The City issued the Request for Proposals for the Retail Sales of Cannabis and Cannabis Related Products to seek proposals from individuals and organizations interested in undertaking the retail sale of cannabis and cannabis products for non-medicinal use within the City's boundaries, and required that proposals include details as to how the challenges with the retail sale of cannabis and cannabis products would be addressed;
f) The City received and reviewed over 30 proposals in response to the Request For Proposals, and identified The Original Farm's proposal as one that best addressed the challenges with the retail sale of cannabis and cannabis products; and,
g) The Original Farm is committed to assisting the City and taking positive steps to address the challenges with the retail sale of cannabis and cannabis products;

Now therefore be it resolved that Council issue Temporary Use Permit TUP19-0002 to The Original Farm for it to operate a Cannabis Retail Store at 101-945 Reunion Avenue for an additional three-year term subject to the terms and conditions in the Temporary Use Permit originally issued by Council on May 7, 2019 and amended by Council on September 20, 2021.

Motion CARRIED.

10.2 DVP22-0014 - Application to Vary Fence Height at 2788 and 2792 Winster Avenue (RCMP Property)

MOVED BY: HARDER
SECONDED: GUIRY

That Development Variance Permit No. DVP22-0014 be issued by Council for the City of Langford to Braden Hutchins on behalf of City of Langford to vary the fence height at 2788 and 2792 Winster Road (RCMP Properties) subject to the following terms and conditions:
1. Variances
The following regulations of Zoning Bylaw No. 300 be varied pursuant to section 498 of the *Local Government Act:*
a) That section 3.21.03(3) of Zoning Bylaw No. 300 be varied to increase the maximum permitted height of a fence abutting a highway from 1.2m (3.9 ft) to 3.5m (11.5 ft).

Motion CARRIED.

11. REPORTS

11.1 Application to Rezone 2833, 2835, 2837, and 2839 Knotty Pine Road from One- and Two-Family Residential (R2) to City Centre 2 (CC2) to Allow for a Townhouse Development

MOVED BY: WAGNER
SECONDED: HARDER

That Council:

1. Accept the revised site plan and proceed with scheduling a Public Hearing for Bylaw No. 2098 to amend the zoning designation of the properties located at 2833, 2835, 2837, and 2839 Knotty Pine Road from One- and Two-Family Residential (R2) to City Centre (CC2) subject to the following terms and conditions:

    a. That the applicant provides, **prior to Bylaw Adoption**, a Section 219 covenant, registered in priority of all other charges on that title, that agrees:

        i. To dedicate 5% of the lot area to the City at the southwest corner of the lot, inclusive of the Garry Oak and Bigleaf Maple trees, prior to the issuance of a building permit;

        ii. That the tree protection measures outlined in the arborist report be implemented throughout construction to protect the Garry Oak, Bigleaf Maple, and Cypress trees that have retention potential, inclusive of tree protection fencing;

Motion CARRIED.

11.2 Application for a Development Variance Permit to reduce front, rear, and interior lot line setbacks at 960 Latoria Rd

MOVED BY: MORLEY
SECONDED: WAGNER

THAT Council:

1. Direct staff to provide notice that Council will consider issuing a Development Variance Permit for the property at 960 Latoria Road with the following variance:

    a. That Section 3.05.02(1) of Zoning Bylaw 300 be varied to reduce the rear lot line setback from 15m (49.2ft) to 4.57m (15ft) for the proposed agricultural accessory structure only.

Subject to the following terms and conditions:

i. That the site is developed in accordance with the plan shown as Figure 4.

ii. That environmental Development Permit or an exemption from a Development Permit is obtained prior to construction of an accessory structure.

iii. That a Building Permit is obtained prior to construction of an accessory structure.

Motion CARRIED.
Councillor Guiry and Yacucha opposed.

11.3 West Shore Parks and Recreation Society Budget

MOVED BY: GUIRY
SECONDED: HARDER

THAT Council approve the 2023 West Shore Parks and Recreation Society budget.

Motion CARRIED.

11.4 Greater Victoria Public Library 2023 Budget and 2023-2027 Five Year Financial Plan

MOVED BY: SZPAK
SECONDED: HARDER

THAT Council approve the Greater Victoria Public Library 2023 Operating Budget and Five-Year Financial Plan.

Motion CARRIED.

11.5 Community Engagement for Proposed New Park on Jeanine Drive

MOVED BY: GUIRY
SECONDED: WAGNER

THAT Council direct staff to proceed with community engagement for the proposed new park on Jeanine Drive

Motion CARRIED.

11.6 Proposal for Interim Committee Structure

MOVED BY: YACUCHA
SECONDED: WAGNER

THAT Council

Direct staff to initiate the process for creating two interim committees of Council by bringing forward an updated Terms of Reference / Committee of Council Policy, an expression of interest process for appointing citizen representatives to each committee, and a proposed committee schedule for Council's consideration;

AND

That Council direct staff to send out letters to all current committee members on behalf of Mayor and Council thanking them for their service and contributions.

Motion CARRIED.

11.7 Council Code of Conduct

MOVED BY: GUIRY
SECONDED: MORLEY

THAT the Council Code of Conduct Policy, POL-0169-ADMIN, be adopted.

Motion CARRIED.

11.8 Respectful Workplace Policy

MOVED BY: HARDER
SECONDED: WAGNER

THAT Council repeal POL-0001-ADMIN Workplace Bullying and Harassment Policy and adopt POL-0170-ADMIN Council Respectful Workplace Policy.

Motion CARRIED.

11.9 Center Mountain Lellum and North Langford Elementary School Turf Field Operating Agreement

MOVED BY: YACUCHA
SECONDED: HARDER

THAT Council instruct the Mayor and the Chief Administrative Officer to execute the Operating Agreement in substantially the proposed form, subject to minor edits and modifications;

Motion CARRIED.

12. BYLAWS

12.1 BYLAW NO. 2068 (Background report attached)

"Langford Zoning Bylaw, Amendment No. 674, (658 and 664 Redington Avenue), Bylaw No. 2068, 2022". (SECOND AND THIRD READINGS)

THAT Council give Bylaw No. 2068 second and third readings.

MOVED BY: MORLEY
SECONDED: WAGNER

THAT Council at 10:57 p.m. extend the meeting 1 more hour or end of business.

Motion DEFEATED.

MOVED BY: HARDER
SECONDED: YACUCHA

THAT Council at 10:58 p.m. extend the meeting 15 minutes.

Motion CARRIED.

12.2 BYLAW NO. 2105 (Background report attached)

"Langford Zoning Bylaw, Amendment No. 694, (771, 775, and 781 Station Avenue), Bylaw No. 2105, 2022". (SECOND AND THIRD READINGS)

That Council give Bylaw No. 2105 second and third readings.

12.3 BYLAW NO. 2113 (Background report attached)

"Sewer Utility Bylaw Amendment No. 6, Bylaw No. 2113, 2023". (FIRST, SECOND AND THIRD READINGS)

MOVED BY: YACUCHA
SECONDED: WAGNER

THAT COUNCIL direct staff to work with West Shore Environmental Services to bring forward a bylaw amendment that does the following:
1. freezes the SCRF rate until such time as the full review of the contract and financial modelling is complete; and
2. that includes an increase in user fees for 2023.

Motion CARRIED.
Councillor Morley opposed.

12.4 BYLAW NO. 2117

"City of Langford Tree Protection Bylaw No. 2117, 2023". (ADOPTION)

MOVED BY: GUIRY
SECONDED: MORLEY

THAT Council adopt City of Langford Tree Protection Bylaw No. 2117, 2023.

Motion CARRIED.

MOVED BY: YACUCHA
SECONDED: WAGNER

THAT Council at 11:12 p.m. extend the meeting until 12 a.m.

Motion CARRIED.

12.5 BYLAW NO. 2118

"City of Langford Ticket Information Authorization Bylaw Amendment No. 20, Bylaw No. 2118, 2023". (ADOPTION)

MOVED BY: YACUCHA
SECONDED: SZPAK

THAT Council adopt City of Langford Ticket Information Authorization Bylaw Amendment No. 20, Bylaw No. 2118, 2023.

Motion CARRIED.

13. IN CAMERA RESOLUTION

MOVED BY: GUIRY
SECONDED: HARDER

THAT Council close the meeting to the public pursuant to section 90 (2) (b) of the *Community Charter* to consider:

- the consideration of information received and held in confidence relating to negotiations between the municipality and a provincial government or the federal government or both, or between a provincial government or the federal government or both and a third party.

Motion CARRIED.

14. RISE and REPORT

14.1 Te'mexw Treaty Advisory Committee Appointment

MOVED BY: YACUCHA
SECONDED: HARDER

THAT Council rise and report the in camera resolution from February 6, 2023:

> THAT Council appoint Councillor Wagner to be the City's representative on the Te'mexw Treaty Advisory Committee.

Motion CARRIED.

15. ADJOURNMENT

Mayor Goodmanson adjourned the meeting at 11:26 pm.

Presiding Council Member

SCOTT GOODMANSON
MAYOR

Certified Correct - Corporate Officer

Marie Watmough
Corporate Officer